TEXAS
Health and Human Services

Stephanie Muth, Executive Commissioner

Request for Proposals (RFO) for

Video Directly Observed Therapy ("VDOT")

RFO No. HHS0015558v2

Date of Release: July 16, 2026

Responses Due: August 26, 2026 by 10:30 a.m. Central Time

NIGP Class/Item Codes

Class/Item Code	Description
920-02	Access Services, Data
920-03	Application Services Provider (ASP), Web Based Hosted
920-07	Application Software for Microcomputer System: Business, Mathematical and Statistical, Medical, Scientific, etc.
920-13	Advanced Authentication Software Services, Including Maintenance and Repair
920-39	Processing System Services, Data (Not Otherwise Classified)
920-45	Software Maintenance and Support Services and Updates and Data Hosting Services
920-46	Software Updating and Upgrading Services
920-66	System, Network, Database, DBA Administration Services
920-91	Training, Computer Based, Software Supported

Table of Contents

Article I. Executive Summary, Definitions, and Authority 6

1.1 Introduction 6

1.2 Definitions 7

1.3 Authority 10

Article II. Scope of Work 11

2.1 Description of Services 11

2.1.1 Texas Risk and Authorization Management Plan 11

2.1.2 Requirements Traceability Matrix 11

2.1.3 Disaster Recovery Test 12

2.1.4 Invoicing 12

2.2 Contract Award, Term, and Historical Compensation 13

2.2.1 Contract Award and Execution 13

2.2.2 Contract Term 13

2.2.3 Historical Compensation 13

2.3 Data Use Agreement and Security Privacy Inquiry 13

2.4 No Guarantee of Volume, Usage, or Compensation 14

Article III. Administrative Information 15

3.1 Schedule of Events 15

3.2 Ambiguity, Conflict, or Discrepancy 16

3.3 Inquiries 16

3.3.1 Sole Point of Contact 16

3.3.2 Prohibited Communication 17

3.3.3 Exception to Sole Point of Contact 17

3.3.4 Solicitation Questions 18

3.4 Pre-proposal Conference 18

3.4.1 Attendance 18

3.4.2 Conference Logistical Information 19

3.4.3 Questions at Pre-Proposal Conference 19

3.5 Solicitation Response Composition 20

3.5.1 General Information 20

3.5.2 Page Limit and Supporting Documentation 20
3.5.3 Discrepancies 20
3.5.4 Exceptions 20
3.5.5 Assumptions 21
3.5.6 Binding Offer 21
3.6 Solicitation Response Submission and Delivery 21
3.6.1 Deadline 21
3.6.2 Submission Option 21
3.6.3 Submission Checklist 22
3.6.4 Labeling and Delivery for USB Submission and Other Materials 24
3.6.5 Modifications and Withdrawals 25
Article IV. Solicitation Response Evaluation and Award Process 26
4.1 Conformance with State Law 26
4.2 Best Value Determination 26
4.2.1 Selection Methodology 26
4.2.2 Minimum Qualifications 26
4.2.3 Initial Compliance Screening 27
4.2.4 Written Solicitation Response Evaluation 27
4.2.5 Written Response Evaluation Criteria 27
4.2.6 Best and Final Offer (BAFO) 28
4.2.7 Final Written Response Score 28
4.2.8 Summary of Best Value Determination 28
4.2.9 TX-RAMP Certification Assessment 29
4.3 Questions or Requests for Clarification 29
4.4 Accessibility Scoring 29
Article V. Narrative/Technical Proposal 30
5.1 Narrative Proposal 30
5.1.1 Executive Summary 30
5.1.2 Key Staffing Profile 30
5.2 Technical Proposal 30
5.2.1 Technology Architecture 30

5.2.2 System Availability and Capacity 31
5.2.3 Software and Hardware Components 31
5.2.4 System Integration 31
5.2.5 System Administration, Support, and Maintenance 31
5.2.6 System Security and Disaster Recovery 32
5.2.7 Performance Monitoring and Management 32
5.2.8 Transition Summary 33
5.2.9 Training Approach 33
5.2.10 Turnover Summary 33
Article VI. Required Respondent Information 34
6.1 Company Information 34
6.1.1 Company Narrative 34
6.1.2 Company Profile 34
6.2 Franchise Tax – Right to Transact Business in Texas 35
6.3 References 35
6.4 Major Subcontractor Information 35
6.5 Affirmations and Certifications 35
6.6 Other Reports 36
6.6.1 Dun and Bradstreet Reports 36
6.6.2 Financial Statements and Financial Solvency 36
6.6.3 Alternate Report 37
6.7 Corporate Guarantee 37
6.8 Subcontracting Plan 37
6.9 TX-RAMP Documentation 38
6.10 Accessibility/Voluntary Product Accessibility template (VPAT) Documentation 38
6.11 Secretary of State Certification 39
Article VII. Cost Proposal 40
7.1 Cost Proposal 40
Article VIII. General Terms and Conditions 41
8.1 General Conditions 41
8.1.1 Changes, Modifications, and Cancellation 41

8.1.2 Offer Period 41
8.1.3 Costs Incurred 41
8.1.4 Contract Responsibility 41
8.1.5 Public Information Act - Respondent Requirements Regarding Disclosure 42
8.1.6 Respondent Waiver – Intellectual Property 44
8.1.7 Standards of Conduct for Vendors 44
8.1.8 Disclosure of Interested Parties 45
8.2 Insurance 45
8.2.1 Required Coverage 45
8.2.2 Alternative Insurability 45
8.3 Protest 45
Article IX. List of Exhibits 46

ARTICLE I. EXECUTIVE SUMMARY, DEFINITIONS, AND AUTHORITY

1.1 INTRODUCTION

The State of Texas, by and through the Texas Health and Human Services Commission (HHSC), on behalf of the Texas Department of State Health Services (DSHS), is issuing this Solicitation to solicit proposals from qualified vendors to provide Video Directly Observed Therapy (VDOT) services.

VDOT enables DSHS staff to remotely observe Clients taking tuberculosis (TB) medications using video technology as an alternative to in-person Directly Observed Therapy (DOT). The VDOT solution must support both real-time video observation (Synchronous VDOT) and recorded video submission for later review (Asynchronous VDOT).

The system must allow secure transmission of protected health information, support use on mobile devices, and reduce the need for routine travel associated with in-person observation while maintaining required treatment monitoring. VDOT will be used for eligible Clients in accordance with program policies and will supplement, but not replace, in-person DOT services.

The use of VDOT decreases the amount of idle time spent driving to perform in-person DOT Services. Provider can travel up to six (6) hours per workday to provide medication administration to one (1) Client; with that interaction taking less than 30-minutes total. Providers' knowledge and abilities are not fully utilized when they travel so extensively. VDOT allows the Provider the same interaction and observation for eligible Clients but decreases the need for repetitive travel. It also evokes a Client-centered delivery method to give the Client ownership and control over their treatment.

HHSC Procurement and Contracting Services (PCS) will administer the procurement process for this Solicitation which includes Solicitation distribution, handling of communications from vendors, as well as managing the receipt of communications from vendors, as well as managing receipt of Responses for review and evaluation.

Prior to award of the Contract, Respondent must obtain TX-RAMP Level 2 certification. TX-RAMP Provisional Status does not satisfy the TX-RAMP Certification Level 2 requirement. For this Solicitation, HHSC shall not provide "agency-sponsored" TX-RAMP Provisional Status certification to any Respondent.

Information regarding DSHS and its programs is available online and can currently be accessed at https://www.dshs.texas.gov/.

1.2 DEFINITIONS

Refer to **Exhibit B, Health and Human Services (HHS) Uniform Terms and Conditions (UTC) – Vendor**, and **Exhibit C, Health and Human Services (HHS) Additional Provisions,** for additional definitions.

As used in this Solicitation, unless a different definition is specified or the context clearly indicates otherwise, the following terms and conditions have the meanings assigned below:

"Addendum" means a written clarification or revision to this Solicitation issued by HHSC PCS and posted to the ESBD.

"Advancement Criteria" means the published criteria for Respondent to advance to the next phase of evaluation if multiple evaluation methods are utilized.

"Application" means the Video Directly Observed Therapy (VDOT) software platform, including its web-based interface accessible through a computer and its mobile application accessible on compatible mobile devices, through which authorized users record, submit, review, and manage VDOT sessions and related information.

"Award Consideration (AC) Documents" means documents Respondent must submit as part of the Solicitation Response to be considered for negotiations or award.

"Asynchronous" means a type of VDOT process in which the Client uploads a video of their treatment, which is later viewed by a Provider.

"Business Hour" means a clock hour during the standard Business Hours of a Business Day.

"Calendar Day" means every day on the calendar, i.e. all 365 days of the year (366 if it is a leap year).

"Client" means TB patients using the system to receive care.

"Client Record" is a documented collection of information about a Client's health history, care, and treatment.

"Contract" means the contract resulting from this SOLICITATION.

"Contractor" means the Party selected to provide the goods or Services to the State under this Contract.

"Contract Effective Date" means the date when a contract becomes legally binding and enforceable, and the terms of the agreement begin to apply.

"Contract Term" means the period beginning with the commencement date or Effective Date of a Contract and ending when the Contract expires in accordance with its terms, or when it has been terminated.

"DSHS" means the Department of State Health Services.

"Effective Date" has the same meaning as the definition in **Exhibit B, Health and Human Services (HHS) Uniform Terms and Conditions – Vendor**.

"ESBD" means the Electronic State Business Daily, the electronic marketplace where State of Texas bid opportunities over $25,000 are posted. The ESBD may currently be accessed at http://www.txsmartbuy.com/esbd.

"Final Written Response Score" refers to the final scoring of the written response as documented in the Solicitation.

"HHSC" means the Health and Human Services Commission.

"HHSC PCS" means Procurement and Contracting Services (PCS), a division of HHSC.

"HUB" means Historically Underutilized Business, as defined by Section 2161.001(2) of the Texas Government Code.

"Subcontracting Plan" means written documentation regarding the use of subcontractors, which is required by Section 2161.252 of the Texas Government Code, for a purchase with an expected value of $100,000 or more when the state agency has determined subcontracting opportunities are probable. The Subcontracting Plan subsequently becomes a provision of the Contract and Contractor's compliance with the Subcontracting Plan will be monitored during the Contract Term.

"Mobile Application" means software Application designed to run on a mobile device such as a phone or tablet.

"Operations Start Date" means a specific date when the terms and obligations outlined in the Contract officially begin to be enforced and put into action.

"Provider" means a group of healthcare professionals – who may be both DSHS employees and contractors - who work together to provide care for a Client. The care team may include doctors, nurses, therapists, social workers, and other specialists.

"Respondent" means the individual or entity responding to this Solicitation.

"Software as a Service" or "SaaS" means a method of software delivery and licensing in which software is accessed online via a subscription, rather than bought and installed on individual computers.

"Services" means the tasks, functions, and responsibilities assigned and delegated to Contractor under the Contract.

"Solicitation" means this RFO including all exhibits, attachments, forms, and Addenda, if any.

"Solicitation Consideration (SC) Documents" means documents that must be submitted by Respondent with the Solicitation Response in order to be considered for evaluation and cannot be resubmitted or have errors remedied after the submission due date and time in the Schedule of Events has passed.

"Standing Delegation Order (SDO)" means written instructions, orders, rules, regulations, or procedures prepared by a physician that provide authority and a plan for use with patients presenting themselves prior to being examined or evaluated by a physician, or patients without an indication to be examined or evaluated by a physician. SDOs are distinct from specific orders written for an individual patient.

"Standing Medical Order (SMO)" means written instructions, orders, rules, regulations, or procedures prepared by a physician that provide authority and direction for the performance of certain prescribed acts for patients that have been examined or evaluated by a physician. SMOs are distinct from specific orders written for an individual patient.

"State" means the State of Texas and its instrumentalities, including HHSC or DSHS, and any other state agency, its officers, employees, or authorized agents.

"Synchronous" means a type of VDOT that is real-time video observation of Client treatment.

"Transition Plan" means a structured roadmap outlining the steps and responsibilities involved in transferring a contract from incumbent contractor to the newly selected contractor.

"TX-RAMP" means the Texas Risk and Authorization Management Program established by DIR that provides a standardized approach for security assessment, authorization, and continuous monitoring of cloud computing services that process the data of a state agency. To become TX-RAMP certified, entities must submit prescribed documentation to DIR. Information regarding TX-RAMP is currently located at: https://dir.texas.gov/texas-risk-and-authorization-management-program-tx-ramp.

"User" means DSHS personnel, Providers or Clients who will use the VDOT Application.

"VDOT" means Video Directly Observed Therapy and is an alternative to DOT used to ensure Clients are taking prescribed medications to control the TB virus.

"Visit" a scheduled appointment between a Client and Provider to receive care and to collect or share health information.

"VPTS" means Vendor Performance Tracking System maintained by the Texas Comptroller of Public Accounts. The VPTS may be currently accessed at https://comptroller.texas.gov/purchasing/programs/vendor-performance-tracking/.

"Web-Based" or "Web-Application" is a software program that operates through a web browser and is accessed over the internet.

1.3 AUTHORITY

HHSC is soliciting the services stated in this Solicitation under of the authority Texas Government Code 2157.068.

ARTICLE II. SCOPE OF WORK

2.1 DESCRIPTION OF SERVICES

DOT for the provision of TB medications to Clients is the standard of care in Texas. The Centers for Disease Control and Prevention (CDC), recommend DOT as the only documented evidence-based intervention that ensures Clients are cured from TB using a supervised medication adherence regimen. VDOT uses technology to achieve direct observation, allowing Providers to allot more time to see more Clients. Implementing a VDOT program requires adherence to all current, approved DSHS Standing Delegation Orders (SDOs), Standing Medical Orders (SMOs) and must follow federal and state privacy and security laws.

2.1.1 Texas Risk and Authorization Management Plan

Commencing on the Effective Date and during the Contract Term, Contractor must provide Services that comply with TX-RAMP Certification Level 2. Contractor acknowledges that TX-RAMP Provisional Status does not satisfy the TX-RAMP Certification Level 2 requirement.

2.1.2 Requirements Traceability Matrix

The Contractor shall comply with **Exhibit N, Requirements Traceability Matrix**, that provides a detailed Requirements Traceability Matrix (RTM) that defines and organizes all required Services and technical requirements to be fulfilled by the Contractor. The RTM serves as a foundational document for managing compliance, performance measurement, and deliverable validation throughout the Contract lifecycle.

Non-compliance or failure to meet performance measures may result in enforcement of liquidated damages or other contractual remedies.

In accordance with **Exhibit N, Requirements Traceability Matrix,** the following requirements areas are included:

1. Transition Requirements, (Table 1);
2. Maintenance and Support Requirements, (Table 2);
3. Functional Requirements, (Table 3);
4. Training Requirements, (Table 4);
5. Reporting Requirements, (Table 5);

6. Security Requirements, (Table 6);
7. Staffing Requirements, (Table 7);
8. Accessibility Requirements, (Table 8);
9. Turnover Phase Requirements, (Table 9);
10. Key Performance Measures and Liquidated Damages, (Table 10); and
11. Deliverables, (Table 11).

2.1.3 Disaster Recovery Test

The Contractor, for no additional compensation, shall conduct on an annual basis a Disaster Recovery test to assess the effectiveness of the Contractor's Disaster Recovery Plan. On or before the ninetieth (90th) Calendar Day following each Disaster Recovery test, Contractor will provide DSHS, with a written summary report detailing the results of the Disaster Recovery test. Upon DSHS's written request, Contractor shall make Contractor personnel available to discuss with DSHS the results of the Disaster Recovery test. Contractor shall use commercially reasonable efforts to resolve issues identified during the Disaster Recovery test and, for each unsuccessful test, Contractor shall conduct an additional Disaster Recovery test in a timely manner to validate the successful implementation of Contractor's remediation activities.

2.1.4 Invoicing

The Contractor shall submit an invoice to DSHS in a format consistent with the line-item descriptions of **Exhibit M, Cost Proposal**.

Each invoice submitted must identify:

a. The purchase order number;
b. HHSC's Contract number;
c. The time period (e.g., month); and
d. Line-item description for Service or Deliverable.

Failure to submit required supporting documentation with the invoice may result in return of invoices and delay of payment.

Invoices shall be sent to:

Health and Human Services Commission

Attn: Invoice – HHSC MC2065
4601 W. Guadalupe St.
Austin, TX 78751
Fax: (512) 206-4854
E-mail: IT_invoicing@hhs.texas.gov

Chapter 2251 of the Texas Government Code shall govern remittance of payment and remedies for late payment and non-payment.

2.2 CONTRACT AWARD, TERM, AND HISTORICAL COMPENSATION

2.2.1 Contract Award and Execution

DSHS intends to award one (1) Contract as a result of this Solicitation. Any award is contingent upon approval of the DSHS executive commissioner or their designee.

If, for any reason, a final Contract cannot be executed with a Respondent selected for award within sixty (60) days of DSHS's determination to seek to contract with that Respondent, DSHS may negotiate a Contract with the next highest-scoring Respondent or may withdraw, modify, or partially award this Solicitation.

2.2.2 Contract Term

The initial term of any Contract resulting from this Solicitation will for one (1) year. DSHS, at its sole option, may extend any Contract awarded pursuant to this Solicitation for up to four (4) one-year optional extensions.

Following the base term and any allowable renewals or extensions, DSHS may extend any resulting Contract for not more than one (1) additional option period to address immediate operational or Service delivery needs. If the resulting Contract does not include a defined option period, the extension is limited to one (1) year.

2.2.3 Historical Compensation

Historical compensation under contracts with similar scope and size to this Solicitation has been approximately $188,400.00 per fiscal year. Notwithstanding **Section 2.2.3 (Historical Compensation)**, DSHS reserves the right to adjust any projected amount based on state funding during the term of a resulting Contract.

2.3 DATA USE AGREEMENT AND SECURITY PRIVACY INQUIRY

By entering into a Contract with DSHS as a result of this Solicitation, Respondent agrees to be bound by the terms of the **Data Use Agreement (DUA),** attached as **Exhibit D**.

Respondents must complete and return with their Solicitation Response **Exhibit D-1**, **Attachment 2 to the DUA, Security and Privacy Inquiry (SPI)**.

2.4 No Guarantee of Volume, Usage, or Compensation

DSHS makes no guarantee of volume, usage, or total compensation to be paid to the Contractor under any awarded Contract, if any, resulting from this Solicitation. Any awarded Contract is subject to appropriations and the continuing availability of funds.

DSHS reserves the right to cancel, make partial award, or decline to award a Contract under this Solicitation at any time at its sole discretion.

ARTICLE III. ADMINISTRATIVE INFORMATION

3.1 SCHEDULE OF EVENTS

EVENT	DATE/TIME
Solicitation Posting Date to ESBD (Date of Release)	JULY 16, 2026
Pre-proposal Conference and Subcontracting Plan Training Attendance is Optional	JULY 23, 2026, at 10:00 AM Central Time
Deadline for Submitting Questions or Requests for Clarification	JULY 24, 2026 at 5:00 PM Central Time
Tentative Date Responses to Questions or Requests for Clarification Posted on ESBD	AUGUST 5, 2026
Deadline for courtesy Subcontracting Plan review	AUGUST 12, 2026 at 2:00 PM Central Time
Deadline for Submission of Solicitation Responses ***[NOTE: Responses must be RECEIVED by HHSC by the deadline.]***	AUGUST 26, 2026 **at 10:30 AM** Central Time
Evaluation Period	AUGUST 2026 - OCTOBER 2026
Anticipated Notice of Award	DECEMBER 2026
Anticipated Contract Start Date	January 2027

Respondents must submit their Solicitation Responses to HHSC in accordance with the due date and time indicated in this Schedule of Events or as changed via an Addendum posted to the ESBD.

NOTE: All dates are tentative and HHSC reserves the right to modify these dates at any time. At the sole discretion of HHSC, events listed in the Schedule of Events are subject to scheduling changes and cancellation. Scheduling changes or cancellation determinations made prior to the deadline for submission will be published by posting an Addendum to the ESBD. After the

deadline for submission, if there are delays that significantly impact the anticipated award date, HHSC, at its sole discretion, may post updates regarding the anticipated award date to the Procurement Forecast on the HHS Procurement Opportunities web page. Each Respondent is responsible for checking the ESBD and Procurement Forecast for updates.

By submitting a Solicitation Response, Respondent represents and warrants that any individual submitting the Solicitation Response and any related documents on behalf of the Respondent is authorized to do so and to bind the Respondent under any Contract that may result from this Solicitation.

3.2 AMBIGUITY, CONFLICT, OR DISCREPANCY

Respondent must notify the **Sole Point of Contact (Section 3.3.1)** of any ambiguity, conflict, discrepancy, exclusionary specification, omission, or other error in the Solicitation in the manner and by the deadline described in **Section 3.3.4 (Solicitation Questions)**.

Respondent submits a Solicitation Response at its own risk.

If Respondent fails to properly and timely notify the **Sole Point of Contact (Section 3.3.1)** of any ambiguity, conflict, discrepancy, exclusionary specification, omission, or other error in the Solicitation, Respondent, whether awarded a Contract or not:

a. Waives any claim of error or ambiguity in the Solicitation and any resulting Contract;

b. Must not contest the interpretation by HHSC of such provision(s); and

c. Is not entitled to additional compensation, relief, or time by reason of ambiguity, conflict, discrepancy, exclusionary specification, omission, or other error or its later correction.

3.3 INQUIRIES

3.3.1 Sole Point of Contact

All requests, questions, or other communication about this Solicitation shall be made in writing to HHSC PCS, addressed to the person listed below (Sole Point of Contact). Additionally, a phone number is provided for purposes such as instructing a potential Respondent through an IT system or website referenced in this Solicitation. Communications via telephone are not binding.

The Sole Point of Contact will authorize a secondary Sole Point of Contact in the event of their absence and, in such an event, will include the contact information for the secondary Sole Point of Contact in their automatic reply out-of-office e-mail message. Respondents seeking to contact the Sole Point of Contact should do so via e-mail in order to receive updated contact information.

Name	Chastity Marion, CTCD, CTCM
Title	PCS Purchaser
Address	Procurement and Contracting Services Building 1100 W 49th St. MC: 2020 Austin, TX 78756
Phone	(512) 834-6719
Email	chastity.marion@hhs.texas.gov

See also, **Section 3.3.3 (Exception to Sole Point of Contact)** below.

3.3.2 Prohibited Communication

Except as provided in **Section 3.3.1 (Sole Point of Contact)** and **Section 3.3.3 (Exception to Sole Point of Contact)**, potential Respondents and Respondents are prohibited from any communication with HHSC regarding the Solicitation. HHSC, its representative(s), and partners will not answer any questions or otherwise discuss the contents of this Solicitation with any potential Respondent or its representative(s). Attempts to ask questions by phone or in person will not be allowed or recognized as valid. Respondent shall rely only on written statements issued by or through HHSC designated staff as provided by **Section 3.3 (Inquiries)**. This restriction does not preclude discussions between affected parties for the purposes of conducting business unrelated to this Solicitation. **Failure to comply with these restrictions may result in disqualification of Respondent's Solicitation Response.**

3.3.3 Exception to Sole Point of Contact

Exceptions to **Section 3.3.1 (Sole Point of Contact)** are as follows:

a. Respondents with questions relating to the Subcontracting Plan are permitted to direct those questions to the VetHUB coordinator at cheryl.bradley@hhs.texas.gov.

b. Where it is expressly directed by the Sole Point of Contact that another designated HHSC representative may speak to the Respondent, such as during Contract negotiations. Respondents are required to ensure that communications have been authorized by the Sole Point of Contact before engaging in such communication. Failure to comply with this requirement may result in the disqualification of a Respondent's Solicitation Response.

3.3.4 Solicitation Questions

HHSC will allow written questions and requests for clarification regarding this Solicitation. Questions must be submitted by e-mail to the **Sole Point of Contact (Section 3.3.1)** by the deadline established in **Section 3.1 (Schedule of Events).** Responses to questions or other written requests for clarification will be consolidated and posted to the ESBD and will not be provided individually to requestors.

HHSC reserves the right to amend answers previously posted, prior to the Solicitation response deadline **(Section 3.1**). Amended answers will be posted on the ESBD. It is the Respondent's responsibility to check the ESBD. HHSC also reserves the right to provide a single consolidated response to all similar questions at the agency's sole discretion.

a. All questions and requests for clarification must include the following information:

    1. Solicitation number;
    2. Solicitation package reference (page number, section, and exhibit or attachment, if applicable;
    3. Question topic (e.g., "Schedule of Events," or "**Exhibit M – Cost Proposal**"); and
    4. Question for HHSC.

b. Requestor contact information below must be included in the body of the e-mail and submitted with the question(s):

    1. Company name;
    2. Company representative name;
    3. Phone number; and
    4. E-Mail address.

Questions or requests for clarification received after the deadline in **Section 3.1 (Schedule of Events)**, may be reviewed by HHSC but may not be answered. Only answers to questions submitted to the Sole Point of Contact in writing, in accordance with this section, are binding.

3.4 Pre-proposal Conference

3.4.1 Attendance

HHSC PCS will conduct a pre-proposal conference. Attendance is optional but highly recommended.

Attendees to virtual pre-proposal conferences are required to send an email to the Sole Point of Contact identified in **Section 3.3.1 (Sole Point of Contact)**, advising of participation in the pre-proposal conference. Attendees must provide their name, phone number, and name of the company they are representing regardless of whether the pre-proposal conference is in-person or virtual.

3.4.2 Conference Logistical Information

HHSC PCS will hold the pre-proposal webinar on the date and time set out in **Section 3.1 (Schedule of Events).**

People with disabilities who wish to attend the meeting and require auxiliary aids or services should contact the Sole Point of Contact identified in **Section 3.3.1 (Sole Point of Contact)**, at least seventy-two (72) hours before the meeting in order to have reasonable accommodations made by HHSC.

Conference Call [or Webinar] Information:
https://attendee.gotowebinar.com/register/3745630851364732766

1 (562) 247-8422

At prompt enter passcode: 540-792-293

3.4.3 Questions at Pre-Proposal Conference

a. Reference **Section 3.3.4 (Solicitation Questions)** for the required format and information to be provided for submission of questions and requests for clarification.

b. During the conference, HHSC or DSHS may provide responses to questions and requests for clarification, but only written responses posted by HHSC PCS as an Addendum to the Solicitation on the ESBD will be considered an official, binding update to the Solicitation.

c. HHSC or DSHS reserves the right to amend, prior to the Solicitation Response Deadline, answers previously posted. Amended answers will be posted on the ESBD. Notification of posting will be in accordance with **Section 3.1 (Schedule of Events)**.

d. Conversations with HHSC or DSHS program area staff **before or after the pre-proposal conference** are prohibited.

3.5 SOLICITATION RESPONSE COMPOSITION

3.5.1 General Information

Failure to submit all required Solicitation Response documents in the required format(s) may result in disqualification of the Solicitation Response without further consideration (**Section 3.6.3 (Submission Checklist)).** Respondent shall prepare a Solicitation Response that clearly and concisely represents its qualifications and capabilities. Expensive bindings, colored displays, promotional materials, etc. are not necessary or desired. Respondent should focus on the instructions and requirements of the Solicitation.

3.5.2 Page Limit and Supporting Documentation

The narrative/technical proposal should not exceed eighty (80) pages and should be formatted for 8 ½" x 11" paper with 1-inch margins and typed in Times New Roman, 12-point font. If complete responses cannot be provided without referencing supporting documentation, such documentation must be provided with the Solicitation Response, with specific reference made to the file, page, section, and/or paragraph where the supporting information can be found.

3.5.3 Discrepancies

In the event of any discrepancies or variations between copies, HHSC is under no obligation to resolve the inconsistencies and may make its scoring and selection decisions accordingly, including the decision to potentially disqualify a Solicitation Response. If Respondent is required to designate an "Original" Solicitation Response but fails to do so, HHSC, in its sole discretion, will determine the version to be used as the original or may disqualify the Solicitation Response**.** If the Respondent submits a redacted Solicitation Response as the "Original," HHSC will disqualify the Solicitation Response and it will not be evaluated. HHSC will not accept submissions after the "Deadline for Submission of Solicitation Responses" in the **Schedule of Events (Section 3.1)** to remedy discrepancies or variations in Solicitation Response submissions.

3.5.4 Exceptions

Respondents are highly encouraged, in lieu of including exceptions in their Solicitation Responses, to address all issues that might be advanced by way of exception by submitting such issues as questions or requests for clarification pursuant to **Section 3.3.4 (Solicitation Questions)**.

Any exception included in a Solicitation Response may result in a Respondent not being awarded a Contract. If a Respondent includes exceptions in its Solicitation Response, Respondent is required to use the **Exceptions Form** included as **Exhibit E** to this Solicitation and provide all

information requested on the form. Any exception that does not provide all required information in the format set forth in **Exhibit E** may be rejected without consideration.

No exception, nor any other term, condition, or provision in a Solicitation Response that differs, varies from, or contradicts this Solicitation will be considered to be part of any Contract resulting from this Solicitation unless expressly made a part of the Contract in writing by HHSC.

3.5.5 Assumptions

Respondent must identify on the **Assumptions Form, Exhibit F** any business, economic, legal, programmatic, or practical assumptions that underlie the Respondent's response to the Solicitation. HHSC reserves the right to accept or reject any assumptions. **All assumptions not expressly identified and incorporated into any Contract resulting from this RFP are deemed rejected by HHSC**.

3.5.6 Binding Offer

A Solicitation Response should be responsive to the Solicitation as worded and without any assumption that any or all terms, conditions, or provisions of the Solicitation will be negotiated. Furthermore, all Solicitation Responses constitute binding offers. **Any Solicitation Response that includes any type of disclaimer or other statement indicating that the response does not constitute a binding offer may be disqualified.**

If a Respondent's ability to enter into a Contract is contingent upon any exception or assumption provided in accordance with **Section 3.5.4 (Exceptions**) or **Section 3.5.5 (Assumptions)**, the Respondent may be disqualified from further consideration for Contract award.

3.6 Solicitation Response Submission and Delivery

3.6.1 Deadline

Solicitation Responses must be received at the address in **Section 3.6.4 (Labeling and Delivery for USB Submission and Other Materials)** and time-stamped by HHSC PCS no later than the date and time specified in **Section 3.1 (Schedule of Events)**.

Solicitation Responses received after the deadline specified in Section 3.1 will be rejected and not considered for Contract award.

3.6.2 Submission Option

a. **Submission Option #1**: Respondent shall submit two (2) USB drives—one (1) labeled "Original Proposal" and one (1) labeled "Copy"—containing the following documents:

1. Each USB must contain one file named "Original" that contains the Respondent's entire Solicitation Response (except the cost proposal and Subcontracting Plan) in searchable portable document format (PDF), unless otherwise specified for a particular attachment or exhibit.
2. If applicable in accordance with **Section 8.1.5**, (**Public Information Act – Respondent Requirement Regarding Disclosure),** each USB must contain one (1) file named "Public Information Act Copy" that contains the Respondent's entire Solicitation Response, including all exhibits and attachments, in searchable PDF.
3. In accordance with **Section 7.1, (Cost Proposal)**, each USB must contain one (1) file named "Cost Proposal" that contains the Respondent's cost proposal in Excel format with active formulas (compatible with Microsoft Office 2016).
4. In accordance with **Section 6.8**, (**Subcontracting Plan),** each USB must contain one (1) file named "Subcontracting Plan" in searchable PDF, that contains the Respondent's Subcontracting Plan and all supporting documentation.

c. Submission Option #2: Respondent shall submit the following through the Online Bid Room utilizing the procedures in **Exhibit J, HHS Online Bid Room Information**:

1. One (1) file named "Original" that contains the Respondent's entire Solicitation Response (except the cost proposal and Subcontracting Plan) in searchable portable document format (PDF), unless otherwise specified for a particular attachment or exhibit.
2. If applicable in accordance with **Section 8.1.5, (Public Information Act – Respondent Requirements Regarding Disclosure)**, one (1) file named "Public Information Act Copy" that contains the Respondent's entire Solicitation Response, including all exhibits and attachments, in searchable PDF.
3. In accordance with **Section 7.1, (Cost Proposal)**, one (1) file named "Cost Proposal" that contains the Respondent's cost proposal in Excel format with active formulas (compatible with Microsoft Office 2016).
4. In accordance with **Section 6.8**, (**Subcontracting Plan)**, one (1) file named "Subcontracting Plan" in searchable PDF, that contains the Respondent's Subcontracting Plan and all supporting documentation.

3.6.3 Submission Checklist

Solicitation Consideration and Award Consideration Documents, reference **Section 1.2 (Definitions)** must be submitted by the deadline for Solicitation Response submissions, reference **Section 3.1 (Schedule of Events)**. Solicitation Consideration Documents will be reviewed as received, and Respondent will not have an opportunity to remedy missed requirements. At its

sole discretion, HHSC may request some or all of the Respondents to remedy missing elements of Award Consideration Documents. Those marked "SC" are Solicitation Consideration Documents and those marked "AC" are Award Consideration Documents.

The Solicitation Response must be submitted using one of the approved methods identified in **Section 3.6, (Solicitation Response Submission and Delivery)**. Below are the documents required to be submitted with the Solicitation Response. Where searchable PDF files are required, submission of non-searchable (image only) PDF files may result in disqualification from further consideration for Contract award.

A.	**Proposal and Respondent Information**			
1.	Narrative Proposal	(Section 5.1)	SC	____
2.	Technical Proposal	(Section 5.2)	SC	____
3.	Company Information	(Section 6.1)	SC	____
4.	Franchise Tax Information	(Section 6.2)	AC	____
5.	References	(Section 6.3)	AC	____
6.	Major Subcontractor Information	(Section 6.4)	SC	____
7.	HHS Solicitation Affirmations	(Section 6.5, Exhibit A)	SC	____
8.	Assurances – Non-Construction Programs (if applicable)	(Section 6.5, Exhibit G)	AC	____
9.	Certification Regarding Lobbying (if applicable)	(Section 6.5, Exhibit H)	AC	____
10.	HHS Federal Funding Accountability and Transparency Act (FFATA) Certification Form	Section 6.5, Exhibit K)	AC	____
11.	Exceptions (if applicable)	(Section 3.5.4, Exhibit E)	AC	____
12.	Assumptions (if applicable)	(Section 3.5.5, Exhibit F)	AC	____
13.	Other Reports	(Section 6.6)	AC	____
14.	Corporate Guarantee	(Section 6.7)	AC	____
15.	SPI	(Section 2.3, Exhibits D and D-1)	AC	____
16.	Certificate of Authority	(Section 6.11)	AC	____

17.	TX-RAMP Documentation	(Section 2.1.1, 6.9)	AC	____
18.	Accessibility (VPAT) (if applicable)	(Section 6.10, Exhibit O, Exhibit O-1)	AC	____
19.	Insurance	(Section 8.2)	AC	____
20.	Addendum(s) (if applicable)	(Section 8.1.1)	AC	____
B.	**Cost Proposal**	(Article VII)	SC	____
C.	**Subcontracting Plan Requirements**	(Section 6.8 and Exhibit Q)	SC	____

3.6.4 Labeling and Delivery for USB Submission and Other Materials

Respondent must deliver Solicitation Responses submitted via USB by one of the methods below.

Overnight/Express/Priority Mail	Hand Delivery
Health and Human Services Commission ATTN: Response Coordinator Tower Building Room 108 1100 W. 49th St., MC 2020 Austin, Texas 78756	Health and Human Services Commission ATTN: Response Coordinator Procurement & Contracting Services Building 1100 W. 49th St., MC 2020 Austin, Texas 78756

BE ADVISED, all Solicitation Responses become the property of HHSC after submission and will not be returned to the Respondent. It is the Respondent's responsibility to appropriately mark and deliver the Solicitation Response to HHSC PCS by the specified date. A dated shipping label, invoice of receipt from a from USPS or commercial carrier, or any other documentation in lieu of the on-site time stamp WILL NOT be accepted.

Each Respondent is solely responsible for ensuring its Solicitation Response is submitted in accordance with all Solicitation requirements, including, but not limited to, proper labeling of packages, sufficient postage or delivery fees, and ensuring timely receipt by HHSC. **In no event will HHSC be responsible or liable for any delay or error in delivery. Solicitation Response must be RECEIVED by HHSC PCS by the Solicitation Response Deadline identified in Section 3.1 (Schedule of Events).**

Solicitation Responses submitted via USB by mail or hand delivery shall be placed in a sealed package. The sealed package and the USB drives shall be clearly labeled on the outside as follows:

SOLICITATION NO:	HHS0015558v2
SOLICITATION NAME	Video Directly Observed Therapy
SOLICITATION RESPONSE DEADLINE	Refer to **Section 3.1 (Schedule of Events)**
PURCHASER NAME:	Chastity Marion, CTCD, CTCM
RESPONDENT NAME:	[Respondent Name]

It is Respondent's sole responsibility to ensure that packaging is sufficient to prevent damage to contents. **HHSC will not be responsible or liable for any damage, and damaged Solicitation Responses will not be considered at HHSC's sole discretion.**

HHSC will not be held responsible for any Solicitation Response that is mishandled prior to receipt by HHSC PCS. It is the Respondent's sole responsibility to mark appropriately and deliver the Solicitation Response to HHSC PCS by the specified date and time. **HHSC will not be responsible for late delivery, inappropriately identified documents, or other submission errors that may lead to disqualification or nonreceipt of the Respondent's Solicitation Response.**

3.6.5 Modifications and Withdrawals

Prior to the Solicitation Response submission deadline in **Section 3.1 (Schedule of Events)**, Respondent may: (1) withdraw its Solicitation Response by submitting a written request to the Sole Point of Contact identified in **Section 3.3.1 (Sole Point of Contact)**; or (2) modify its Solicitation Response by submitting a written amendment to the Sole Point of Contact identified in **Section 3.3.1 (Sole Point of Contact)**. When modifying its Solicitation Response, Respondent must include in writing the section(s) of its submission that will be replaced or removed by the amendment.

ARTICLE IV. SOLICITATION RESPONSE EVALUATION AND AWARD PROCESS

4.1 CONFORMANCE WITH STATE LAW

Solicitation Responses shall be evaluated in accordance with Texas Government Code Section 2157.003. HHSC shall not be obligated to select the lowest priced Solicitation Response but shall make an award to the Respondent that provides the best value to the State of Texas.

4.2 BEST VALUE DETERMINATION

4.2.1 Selection Methodology

Solicitation Responses that meet the minimum qualifications will be submitted to the evaluation team for review and scoring. Each member of the evaluation team will receive a copy of each responsive Solicitation Response. The evaluators will review the Solicitation Responses considering the criteria listed in **Section 4.2.5 (Written Response Evaluation Criteria)**.

Evaluators will individually score the Responses. This procurement will utilize an aggregated individual evaluation methodology as outlined by this section.

The following subsections describe the evaluation process, including any criteria for advancement to the various phases of evaluation, if applicable.

4.2.2 Minimum Qualifications

Respondents must meet the minimum qualifications listed below.

a. Respondents must have at least four (4) years of recent experience providing VDOT services and demonstrate experience implementing, monitoring, and maintaining a VDOT system..

b. Respondents have submitted the Response in accordance with Section **3.6, (Solicitation Response Submission and Delivery)** including all Solicitation Consideration (SC) and Award Consideration (AC) Documents, see **Section 3.6.3 (Submission Checklist);**

c. Respondents who receive an overall score on the VPTS of less than a “C” may be disqualified from consideration for award.

4.2.3 Initial Compliance Screening

HHSC will review Solicitation Responses for compliance with the **Submission Checklist (Section 3.6.3)** and for demonstrated ability to meet the **Minimum Qualifications (Section 4.2.2)** required to advance to evaluations. Failure to meet the **Minimum Qualifications (Section 4.2.2),** will result in the disqualification of the Solicitation Response.

HHSC will automatically disqualify any Solicitation Response that does not include one or more of the completed and signed (as applicable) Solicitation Consideration Documents listed in **Submission Checklist (Section 3.6.3)**.

At its sole discretion, HHSC may disqualify any Solicitation Response that does not include all required Award Consideration Documents. Reference **Section 3.6.3 (Submission Checklist).**

HHSC may contact references provided in response to this Solicitation. HHSC may contact Respondent's clients, or solicit information from any available source, including the Comptroller's VPTS. Any information received may be grounds for disqualification if that information, in HHSC's sole discretion, suggests that the Respondent may perform poorly if selected.

4.2.4 Written Solicitation Response Evaluation

Each member of the evaluation team will read the Solicitation Responses in preparation for evaluation. The evaluation team will score all Solicitation Responses that pass initial screening **(Section 4.2.3 (Initial Compliance Screening)).** Solicitation Responses will be scored against the criteria in **Section 4.2.5 (Written Response Evaluation Criteria).**

Solicitation Responses will be evaluated utilizing aggregated individual scoring and any other methods outlined in **Article IV, Solicitation Response Evaluation and Award Process**. The individual evaluators' scores will be aggregated and weighted, resulting in the Final Written Response Scores, unless Interviews or BAFOs are conducted.

4.2.5 Written Response Evaluation Criteria

Solicitation Responses shall be consistently evaluated and scored in accordance with the following criteria. See also, **Exhibit I, Evaluation Tool**.

a. Relevant Experience (30%)

b. Narrative and Technical Proposal (50%)

c. Cost (20%)

4.2.6 Best and Final Offer (BAFO)

HHSC may, at its sole discretion, following the execution of **Section 4.2.1 (Selection Methodology**) request BAFOs from all Respondents or, if applicable, only those Respondents whose Solicitation Responses are ranked most highly by the evaluation committee. The request for a BAFO will allow a Respondent the opportunity to revise its original Solicitation Response, including pricing, or leave its Solicitation Responses originally submitted. Revisions must be submitted in the manner and form prescribed by the BAFO request. Requests will be sent to the point of contact provided by the Respondent. **HHSC is not responsible for a Respondent's failure to timely receive the BAFO request.**

HHSC reserves the right to request more than one (1) BAFO from each of the selected Respondents. If a response is submitted to a request for a BAFO, the Final Written Response Scores will be revised in accordance with the stated criteria in **Section 4.2.5 (Written Response Evaluation Criteria)** as to any changes made to the Respondent's original Solicitation Response**. A request for a BAFO does not guarantee an award or further negotiations.**

If BAFOs are requested by HHSC and submitted by the Respondent, they will be evaluated using the criteria stated in the BAFO invitation, scored, and ranked by the evaluation committee. The award will then be granted to the highest scoring Respondent. However, a Respondent should provide its best offer in its original Solicitation Response. **Respondents should not expect or assume that HHSC will request a BAFO.**

4.2.7 Final Written Response Score

A Respondent's Final Written Response Score is the score from the **Written Solicitation Response Evaluation (Section 4.2.4)**. If BAFOs are conducted, the Final Written Response Score may be adjusted in accordance with **Section 4.2.6 (Best and Final Offer)**. Final Written Response Score may not always determine best value or selection for negotiation and award, see **Summary of Best Value Determination (Section 4.2.8)** for more information.

4.2.8 Summary of Best Value Determination

The final selection for award will be based on best value, as determined by this section. This includes any scoring adjustments for outliers, interviews, best and final offers, oral presentations, demonstrations, site visits, or other additional considerations as specified by this Solicitation. Respondents are encouraged to thoroughly review the processes outlined in this section, as it documents the best value considerations to be made by HHSC when selecting a Respondent for negotiation and Contract award.

4.2.9 TX-RAMP Certification Assessment

Concurrent with the evaluation conducted in **Section 4.2.4 (Written Solicitation Response Evaluation)** and **Section 4.2.6 (Best and Final Offer),** HHSC shall assess the documentation required by **Section 6.9 (TX-RAMP Documentation**) on a pass/fail basis. HHSC reserves the right to confirm TX-RAMP certification status on the DIR website and request additional information from a Respondent to supplement the TX-RAMP documentation submitted in its Response.

If Respondent's submission demonstrates TX-RAMP Level 2 Certification at time of HHSC's review, the Response meets the requisite standard to be considered for contract award.

4.3 Questions or Requests for Clarification

By submitting a Solicitation Response, Respondent grants HHSC the right to ask questions, request clarifications and to obtain any information from any lawful source regarding the past history, practices, conduct, ability, and eligibility of the Respondent to supply Goods or Services and to fulfill requirements under this Solicitation, and the past history, practices, conduct, ability, and eligibility of any director, officer, or key employee of the Respondent. By submitting a Solicitation Response, the Respondent generally releases from liability and waives all claims against any party providing information about the Respondent at the request of HHSC. Such information may be taken into consideration in evaluating the Solicitation Response.

4.4 Accessibility Scoring

Concurrent with the evaluation conducted in **Section 4.2.4 (Written Response Evaluation)** and **Section 4.2.6 (Best and Final Offer (BAFO)**, HHSC shall assess the documentation required by **Section 6.10 (Accessibility/Voluntary Product Accessibility Template (VPAT) Documentation)** on a pass/fail basis.

If Respondent's submission demonstrates a passed score of Accessibility VPAT at time of HHSC's review, the Response meets the requisite standard to be considered for Contract award. **If Respondent's submission does not receive a pass score of Accessibility VPAT at time of HHSC's review, the Response will be rejected, and the Respondent will not be further considered for Contract award.**

ARTICLE V. NARRATIVE/TECHNICAL PROPOSAL

5.1 NARRATIVE PROPOSAL

5.1.1 Executive Summary

Respondents must provide an executive summary of their proposal (excluding cost information) that asserts the Respondent is providing, in its Response, all the requirements of this Solicitation, including **Article II, Scope of Work**. The summary must demonstrate Respondent's understanding of DSHS goals and objectives for this Solicitation.

If the Respondent is providing goods or Services beyond those specifically requested, those goods or Services must be identified. If the Respondent is offering goods or Services that do not meet the specific requirements of this Solicitation, but in the opinion of the Respondent are equivalent or superior to those specifically requested, any such differences must be noted in the executive summary. **The Respondent should realize, however, that failure to provide the Goods and Services specifically requested may result in disqualification**.

The executive summary must not exceed thirty (30) pages and should represent a full and concise summary of the contents of the proposal.

5.1.2 Key Staffing Profile

Respondents must provide key staffing profiles and resumes for all key staff who will be responsible for the performance of the Services requested under this Solicitation (see **Exhibit N, Requirements Traceability Matrix** – **Table 7 (Staffing Requirements**).

5.2 TECHNICAL PROPOSAL

Respondents must provide a detailed description of their proposed technical solution, which must support all business activities and requirements described in this Solicitation. The Technical Proposal must reflect Respondent's clear understanding of the nature of the Work undertaken and must include a detailed description of Respondent's proposed system(s).

The Technical Proposal must include a description of the following system components, at a minimum:

5.2.1 Technology Architecture

Respondents must provide a detailed description of the proposed technology architecture and include one (1) or more diagrams that detail the relationships between key technical components.

5.2.2 System Availability and Capacity

Respondents are responsible for delivering a cost-effective, high-availability environment that minimizes the frequency and impact of system failures, reduces downtime, and minimizes recovery time in the event of catastrophic failure. In this section, Respondents must provide details on their approach to providing a highly available system. In addition, Respondents must describe their proposed approach to monitoring system performance and use as well as planning, sizing, and controlling the system as capacity needs change.

Respondents must describe how their system manages video uploads when internet connectivity is unavailable or disrupted. The proposal must explain whether videos are stored locally and automatically uploaded once a connection is reestablished, or if Users are required to manually resubmit. Respondents should also describe any notifications or safeguards built into the system to ensure no video submissions are lost.

5.2.3 Software and Hardware Components

Respondents must provide details on the software and hardware components they proposed for their system. This includes, but is not limited to, the proposed server topology, specifications for the hardware components, and data storage components. Respondents should also include details on the tools and utilities used to design, build, test, deploy, report, monitor, and operate the system and its components.

5.2.4 System Integration

Respondents must describe their approach to integrating the proposed system with other information systems.

5.2.5 System Administration, Support, and Maintenance

Respondents must detail their approach to administering the system and system components. This includes system support, including the levels of support offered and the process for requesting support. In addition, Respondents must provide a summary of their proposed strategy for maintaining and repairing the system.

Respondents must provide narrative descriptions of their approach to technical support Services, including 24-hour online support, business-hours telephone support, and processes for handling Service requests and optimization requests. Respondents must also explain how support staff will be trained to meet HIPAA requirements and how training completion will be verified. In addition, Respondents must provide a sample Corrective Action Plan template to demonstrate their process for addressing operational deficiencies and system issues. The Respondent's

approach must clearly show how support and maintenance activities will ensure reliable Service delivery, compliance, and effective issue resolution for both Providers and Clients.

5.2.6 System Security and Disaster Recovery

Respondents must detail their approach to security architecture, including the development and implementation measures that will provide security and protection for the system. This includes the proposed backup and recovery processing approach, and proposed virus protection strategy.

Respondents should describe their general approach to reestablishing operations in the event of a catastrophe, as well as their approach to providing HHSC with a disaster recovery plan. Respondents must provide specifications on any hardware and software components utilized by the proposed security and disaster recovery solutions. See **Exhibit L, Information Security and Privacy Requirements**.

5.2.7 Performance Monitoring and Management

Respondents must describe their proposed methodology for monitoring and reporting system performance, as well as the proposed approach to technology management. This includes the methods for centrally managing system resources such as servers, backup, archiving, and recovery equipment, databases, and applications. Respondents must address methods for auditing, tracing, and scanning the system, and provide details on the specialized tools they will use to automate and track monitoring and management activities.

Respondents must provide screenshots of the proposed Application to demonstrate system functionality. Screenshots must illustrate core features such as the Client and Provider interfaces, reporting dashboards, and dose-tracking functions. Respondents must show how the Application supports medication adherence by allowing Providers to track Client doses, generate summary reports highlighting missed doses, and run dashboards that display compliance information. These materials must demonstrate that the solution is user-friendly, supports both Synchronous and Asynchronous observation, and provides the tools necessary for monitoring and clinical decision-making.

Respondents must provide at least one sample dashboard screenshot that illustrates how reporting functionality will appear in the Application. The example should show the ability to track Clients by condition and generate compliance data, including weekly or monthly reporting views. Respondents must demonstrate how dashboards and reports will be refreshed with current data, role-controlled for appropriate access, and designed to support program monitoring, clinical oversight, and performance tracking.

5.2.8 Transition Summary

Respondents must provide narrative descriptions of their proposed transition processes, including how they will coordinate transition activities from Contract award through the Operations Start Date, finalize and update the Transition Plan, and collaborate with the incumbent vendor to ensure an orderly transfer of Services and knowledge. Respondents must also include a sample Readiness Assessment Plan template to demonstrate how readiness will be measured, along with a narrative description of the process for verifying that all Providers are fully trained on both the mobile and Web-Based Applications prior to go-live. These submissions must demonstrate the Respondent's ability to ensure a seamless transition, readiness of systems, and training of end users.

5.2.9 Training Approach

Respondents must provide examples of proposed training materials for both Clients and Providers. Submissions should reflect multiple formats, including written guides, videos, and web-based modules, and should demonstrate how training will meet accessibility needs, support Users with limited literacy, and be available in multiple languages. Respondents must also explain how training will be kept current, promptly updated when system changes occur, and delivered in a way that ensures Providers and Clients are confident and proficient in using the system.

5.2.10 Turnover Summary

Respondents must provide narrative descriptions of their approach to Turnover, including how they will provide weekly status reports during the Turnover Phase, ensure uninterrupted Operations while turnover tasks are carried out, and coordinate activities with DSHS and any successor vendor. Proposals must describe strategies for providing documentation, artifacts, and data to DSHS in a complete and accurate manner and must demonstrate the Respondent's ability to ensure continuity of Services during the transition out of the Contract.

ARTICLE VI. REQUIRED RESPONDENT INFORMATION

6.1 COMPANY INFORMATION

In accordance with **Article III, Administrative Information**, Respondents must include the following information with their responses:

6.1.1 Company Narrative

Respondents must provide a detailed narrative explaining why they are qualified to provide the Services enumerated in **Article II, Scope of Work,** focusing on their key strengths and competitive advantages.

6.1.2 Company Profile

Respondents must provide a company profile, including:

a. Their ownership structure (e.g., corporation, partnership, LLC, or sole proprietorship), including any wholly-owned subsidiaries, affiliated companies, or joint ventures. (*Please provide this information in a narrative and as a graphical representation.*) If Respondent is an affiliate of, or has a joint venture or strategic alliance with, another company, Respondent must identify the percentage of ownership of each joint venture member or affiliate and the percentage of the parent's ownership. The entity performing the majority of the Work under any Contract resulting from this Solicitation, throughout the duration of the Contract, must be the primary bidder. Finally, Respondents must provide their proposed operating structure for the Services requested under this Solicitation and which entities (i.e., parent company, affiliate, joint venture, subcontractor) will be performing them;

b. The year the company was founded and/or incorporated. If incorporated, please indicate the state where the company is incorporated and the date of incorporation;

c. The location of company headquarters and any field office(s) that may provide Services for any resulting Contract under this Solicitation;

d. The number of employees in the company, both locally and nationally, and the location(s) from which employees will be assigned;

e. The name, address, and telephone number of Respondent's point of contact for any resulting Contract under this Solicitation;

f. The name, address, and telephone number of Respondent's point of contact for any questions regarding the Solicitation Response; and

g. Indicate whether the company has ever been in contract with any Texas state agency. If "Yes," specify the contract term, for what duties, and for which agency.

6.2 Franchise Tax – Right to Transact Business in Texas

The Texas franchise tax is imposed on each taxable entity formed or organized in Texas or doing business in Texas. Respondent must provide their 11-digit Comptroller's Taxpayer Number or the 9-digit Federal Employer's Identification Number.

Respondent must be set up in the Texas franchise tax system prior to Contract award. Texas franchise tax information can be accessed at https://comptroller.texas.gov/taxes/franchise/

6.3 References

Respondents shall provide a minimum of three (3) references from similar contracts or projects performed, preferably for state and/or local government, within the last five (5) years. Respondents must verify current contracts and provide the following information:

a. Client name;

b. Contract/project description;

c. Total dollar amount of contract/project;

d. Key staff assigned to the referenced contract/project who will be designated for Work under any Contract resulting from this Solicitation; and

e. Client contract/project manager name, telephone number, fax number, and email address.

6.4 Major Subcontractor Information

Respondents must identify any major subcontractors who will perform fifteen percent (15%) or more of the Work under any Contract resulting from this Solicitation. Respondents must indicate whether or not they hold any financial interest in any major subcontractor. As a condition of award, an authorized officer or agent of each proposed major subcontractor may be required to sign a statement to the effect that the Subcontractor has read, and will agree to abide by, Respondent's obligations under any Contract awarded pursuant to this Solicitation.

6.5 Affirmations and Certifications

Respondents must complete and return with their Solicitation Response all of the following affirmations and certifications:

a. **Exhibit A, HHS Solicitation Affirmations;**

b. Federal Assurances and Certifications:

1. **Exhibit G, Assurances – Non-Construction Programs**; and

2. **Exhibit H, Certification Regarding Lobbying**.

3. **Exhibit K, HHS Federal Funding Accountability and Transparency Act (FFATA) Certification Form**

6.6 OTHER REPORTS

6.6.1 Dun and Bradstreet Reports

Respondents with a Dun and Bradstreet (D&B) number must include a D&B Credit Insights Report with their Solicitation Response.

6.6.2 Financial Statements and Financial Solvency

a. Respondents must submit electronically in a searchable PDF an annual report for the entity submitting the Solicitation Response, which must include:
   1. For years 2023, 2024, and 2025, audited financial statements, including all supplements, management discussion and analysis, and actuarial opinions;
   2. If applicable, for years 2023, 2024, and 2025, consolidated statements for any holding companies or affiliates; and
   3. A full disclosure of any events, liabilities, or contingent liabilities that could affect Respondent's financial ability to perform this Contract. At a minimum, financial statements must include:
      i. Balance sheet;
      ii. Income statement;
      iii. Statement of changes in financial position;
      iv. Statement of cash flows; and
      v. Capital expenditures.

b. If the Respondent is a corporation that is required to report to the Securities and Exchange Commission (SEC), Respondent must submit its three (3) most recent SEC Form 10K, Annual Reports, pursuant to Section 13 or 15(d) of the Securities Exchange Act of 1934, Title 15 of the United States Code Chapter 2B, Sections 78m or 78o(d). Financial materials must be submitted electronically as a word searchable PDF.

c. If audited financial statements are not available, the Respondent must submit unaudited financial information and any other information of the entity submitting the Solicitation Response that the Respondent believes meets the requirements of this section. Reference **Section 6.6.3 (Alternate Report)**. If the submitted documents do

not provide adequate assurance of financial stability or solvency, HHSC reserves the right to request additional information or to disqualify the Respondent.

d. If the Respondent is either substantially or wholly owned by another corporate (or legal) entity, the Respondent must include the information required in this section for each such entity, including the most recent detailed financial report for each such entity.

e. If HHSC determines that an entity does not have sufficient financial resources to guarantee the Respondent's performance, HHSC may require the Respondent to obtain another acceptable financial instrument or resource from such entity, or to obtain an acceptable guarantee from another entity with sufficient financial resources to guarantee Respondent's performance.

6.6.3 Alternate Report

If the Solicitation Response does not contain the annual report specified in **Section 6.6.2(a)** above, the Respondent must provide the following within its Solicitation Response: (1) a statement that the Respondent does not have an audited annual report for the specified time frame(s) and (2) an alternate report which contains the following:

a. For years 2023, 2024, and 2025, unaudited financial statements, including all supplements, management discussion and analysis, and actuarial opinions;

b. Respondent's unaudited financial statement of the most recent quarter of operation; and

c. A full disclosure of any events, liabilities, or contingent liabilities that could affect Respondent's financial ability to perform the Contract.

At a minimum, such financial statements must include:

i. Balance sheet;
ii. Income statement;
iii. Statement of changes in financial position;
iv. Statement of cash flows; and
v. Capital expenditures.

6.7 Corporate Guarantee

If the Respondent is substantially or wholly owned by another corporate (or other) entity, HHSC reserves the right to request that such parent entity unconditionally guarantee performance by the Respondent in each and every obligation, warranty, term, covenant, and condition of the Contract.

6.8 Subcontracting Plan

Respondents must submit the Subcontracting Plan in accordance with **Section 3.6 (Solicitation Response Submission and Delivery).** The Subcontracting Plan should be labeled:

"Subcontracting Plan," and include all supporting documentation in accordance with **Exhibit Q, Subcontracting Plan Requirements,** and the Subcontracting Plan.

A courtesy review of a Respondent's completed Subcontracting Plan is optional and is available upon request to assist in providing a compliant and responsive Subcontracting Plan. This courtesy review may only identify possible deficiencies, but a final compliant determination cannot be provided until the Solicitation Response is submitted.

To request a courtesy review, submit the completed Subcontracting Plan including all supporting documentation in a PDF format by e-mail to the HHSC VetHUB Program Office by or before the Courtesy Review of Subcontracting Plan Deadline in the **Schedule of Events (Section 3.1)**.

E-Mail for Courtesy Review: Cheryl.Bradley@hhs.texas.gov.

E-mail Subject Line: Subcontracting Plan Courtesy Review, No. [HHS0015558v2]

Due Date: [Respondent to add Deadline for Submission of Solicitation Responses information from **Section 3.1 (Schedule of Events)**]

SPs received after the courtesy review deadline in the **Schedule of Events (Section 3.1)**, will not be processed. A response regarding the Subcontracting Plan will be provided at least eight (8) business days prior to the Solicitation Response deadline in the **Schedule of Events (Section 3.1)** from the VetHUB Office, allowing enough time to rectify any potential deficiencies for the final Subcontracting Plan submission.

The final Subcontracting Plan must be submitted with the Solicitation Response by the deadline in the **Schedule of Events (Section 3.1).** Solicitation Responses that do not include a completed Subcontracting Plan shall be rejected due to material failure to comply with Texas Government Code Section 2161.252(b).

6.9 TX-RAMP Documentation

In its Solicitation Response, Respondent must provide the DIR issued TX-RAMP Level 2 Certification Identification Number.

6.10 Accessibility/Voluntary Product Accessibility Template (VPAT) Documentation

In its Solicitation Response, Respondent must provide documentation required by **Exhibit O, VPAT WCAG Edition** and **Exhibit O-1, VPAT Revised Section 508 Edition**.

6.11 SECRETARY OF STATE CERTIFICATION

The Respondent must be currently authorized to do business in the State of Texas as evidenced by Certificate of Authority from the Texas Secretary of State submitted with the Solicitation Response.

ARTICLE VII. COST PROPOSAL

7.1 COST PROPOSAL

As noted above in **Section 3.5 (Solicitation Response Composition),** cost information must be included as a separate document/file, the cost proposal, with the Respondent's Solicitation Response for the services listed in **Article II, Scope of Work**.

Respondents must state their pricing for all Goods and Services rendered during the course of any Contract resulting from this Solicitation, including any and all costs involved that are to be paid or reimbursed by DSHS. The pricing for the required Goods and Services is to be presented only in the format set forth in **Exhibit M, Cost Proposal** of the RFO. Pricing information shall include all costs associated with providing the required Goods and Services and must be submitted and labeled as specified in **Section 3.6 (Solicitation Response Submission and Delivery)**. No reimbursement is available to the successful Respondent beyond the amount agreed to be paid for the Goods and Services provided. Pricing agreed to in any resulting Contract shall be firm and remain constant through the life of the Contract.

The cost proposal provided is for the Goods and/or Services as specified in this Solicitation and shall include all labor, materials, tools, supplies, equipment, and personnel, including but not limited to, travel expenses, associated costs, and incidental costs necessary to provide the products and Services according to the minimum specifications, requirements, provisions, terms, and conditions set forth in this RFO.

ARTICLE VIII. GENERAL TERMS AND CONDITIONS

8.1 General Conditions

8.1.1 Changes, Modifications, and Cancellation

HHSC reserves the right to make changes to and/or cancel this RFO and will post all changes and modifications, whether made as a result of a potential Respondent's written inquiries or otherwise, and cancellation notices on the ESBD. It is the responsibility of the Respondent to check the ESBD regularly for any additional information regarding this RFO. **If the Respondent fails to monitor the ESBD for any changes or modifications to the RFO, such failure will not relieve the Respondent of its obligation to fulfill the requirements as posted.**

8.1.2 Offer Period

Solicitation Responses shall be binding for a period of 240 days after the submission due date. A Respondent may extend the time for which its Solicitation Response will be honored. Upon Contract execution, prices agreed upon by the successful Respondent(s) are an irrevocable offer for the term of the Contract and any Contract renewals or extension(s). No other costs, rates, or fees shall be payable to the successful Respondent unless expressly agreed upon in writing by HHSC.

8.1.3 Costs Incurred

Respondents understand that issuance of this Solicitation in no way constitutes a commitment by HHSC to award a Contract or to pay any costs incurred by a Respondent in the preparation of a response to this Solicitation. HHSC is not liable for any costs incurred by a Respondent. Costs of developing Solicitation Responses, preparing for or participating in Oral Presentations, Demonstrations, and Site Visits, or any other similar expenses incurred by a Respondent are entirely the responsibility of the Respondent, and will not be reimbursed in any manner by the State of Texas.

8.1.4 Contract Responsibility

HHSC will look solely to the successful Respondent for the performance of all contractual obligations that may result from an award based on this Solicitation. The successful Respondent shall not be relieved of its obligations for any nonperformance by its Subcontractors.

8.1.5 Public Information Act - Respondent Requirements Regarding Disclosure

Proposals and contracts are subject to the Texas Public Information Act (PIA). Texas Government Code Chapter 552, and may be disclosed to the public upon request. Other legal authority also requires HHSC to post contracts and proposals on its public website and to provide such information to the Legislative Budget Board for posting on its public website.

Under the PIA, certain information is protected from public release. If Respondent asserts that information provided in its Solicitation Response is exempt from disclosure under the PIA, Respondent must:

a. Mark Original Solicitation Response:

1. Mark the Original Solicitation Response, on the top of the front page, with the words "CONTAINS CONFIDENTIAL INFORMATION" in large, bold, capitalized letters (the size of, or equivalent to, 12-point Times New Roman font or larger);

1. Identify, adjacent to each portion of the Solicitation Response that Respondent claims is exempt from public disclosure, the claimed exemption from disclosure *(**NOTE**: no redactions are to be made in the Original Solicitation Response)*;

b. Certify in Original Solicitation Response – HHS Solicitation Affirmations (attached as Exhibit A to this Solicitation):

Certify, in the designated section of the HHS Solicitation Affirmations, Respondent's confidential information assertion and the filing of its Public Information Act Copy; and

c. Submit Public Information Act Copy of Solicitation Response:

Submit a separate "Public Information Act Copy" of the Original Solicitation Response (in addition to the original and all copies otherwise required under the provisions of this Solicitation). The Public Information Act Copy must meet the following requirements:

1. The copy must be clearly marked as "Public Information Act Copy" on the front page in large, bold, capitalized letters (the size of, or equivalent to, 12-point Times New Roman font or larger);

2. Each portion Respondent claims is exempt from public disclosure must be redacted (blacked out); and

3. Respondent must identify, adjacent to each redaction, the claimed exemption from disclosure. Each identification provided as required in Subsection (c) of this section must be identical to those set forth in the Original Solicitation Response as required in Subsection (a)(2), above. The only difference in required markings and information between the Original Solicitation Response and the "Public Information Act Copy" of

the Solicitation Response will be redactions - which can only be included in the "Public Information Act Copy." There must be no redactions in the Original Solicitation Response.

By submitting a response to this Solicitation, Respondent agrees that, if Respondent does not mark the Original Solicitation Response, provide the required certification in the Affirmations and Solicitation Acceptance, and submit the Public Information Act Copy, Respondent's Solicitation Response will be considered to be public information that may be released to the public without notice to the Respondent in any manner including, but not limited to, in accordance with the Public Information Act, posted on HHSC's public website, and posted on the Legislative Budget Board's public website.

If any or all Respondents submit partial, but not complete, information suggesting inclusion of confidential information and failure to comply with the requirements set forth in this section, HHSC, in its sole discretion and in any Solicitation, reserves the right to (1) disqualify all Respondents that fail to fully comply with the requirements set forth in this section, or (2) to offer all Respondents that fail to fully comply with the requirements set forth in this section additional time to comply.

Respondent should not submit a Public Information Act Copy indicating that the entire Solicitation Response is exempt from disclosure. Merely making a blanket claim that the entire response is protected from disclosure because it contains any amount of confidential, proprietary, trade secret, or privileged information is not acceptable, and may make the entire proposal subject to release under the PIA.

A Solicitation Response should not be marked or asserted as copyrighted material. If Respondent asserts a copyright to any portion of its response, by submitting a response, Respondent agrees to reproduction and posting on public websites by the State of Texas, including HHSC and all other state agencies, without cost or liability.

HHSC will strictly adhere to the requirements of the PIA regarding the disclosure of public information. As a result, by participating in this Solicitation process, Respondent acknowledges that all information, documentation, and other materials submitted in the Solicitation Response in response to this Solicitation may be subject to public disclosure under the PIA. HHSC does not have authority to agree that any information submitted will not be subject to disclosure. Disclosure is governed by the PIA and by rulings of the Office of the Texas Attorney General. Respondents are advised to consult with their legal counsel concerning disclosure issues resulting from this process and to take precautions to safeguard trade secrets and proprietary or otherwise confidential information. HHSC no obligation or responsibility relating to the disclosure or nondisclosure of information submitted by Respondents.

For more information concerning the types of information that may be withheld under the PIA or questions about the PIA, please refer to the most current Public Information Act Handbook

published by the Office of the Texas Attorney General or contact the attorney general's Open Government Hotline at (512) 478-OPEN (6736) or toll-free at (877) 673-6839 (877-OPEN TEX). To access and download the current Public Information Act Handbook, please visit the attorney general's website at https://www.texasattorneygeneral.gov/open-government/members-pub

8.1.6 Respondent Waiver – Intellectual Property

SUBMISSION OF ANY DOCUMENT TO HHSC IN RESPONSE TO THIS SOLICITATION CONSTITUTES AN IRREVOCABLE WAIVER AND AGREEMENT BY RESPONDENT TO FULLY INDEMNIFY THE STATE OF TEXAS, HHSC FROM ANY CLAIM OF INFRINGEMENT BY HHSC REGARDING THE INTELLECTUAL PROPERTY RIGHTS OF RESPONDENT OR ANY THIRD PARTY FOR ANY MATERIALS SUBMITTED TO HHSC BY RESPONDENT.

8.1.7 Standards of Conduct for Vendors

Pursuant to Title 1 of the Texas Administrative Code Part 15, Chapter 391, Subchapter D, Rule §391.405(a), Contractors, Respondents, and vendors interested in working with HHSC are required to implement standards of conduct for their own personnel and agents on terms at least as restrictive as those applicable to HHSC. These standards must adhere to ethics requirements adopted in rule, in addition to any ethics policy, or code of ethics approved by the HHSC Executive Commissioner. A Respondent must sign and submit all ethics, disclosure, confidentiality, and other forms required under the procurement and any resulting contract.

The standards of conduct must include the ten standards of ethical conduct set forth in Section I of the HHS Ethics Policy and requirements to comply with ethical standards set forth in federal and state law (including, but not limited to, Title 1 of the Texas Administrative Code Part 15, Chapter 391, Subchapter D, Rule §391.405(a)).

Standards of conduct of any Contractor, Respondent, or vendor may be reviewed and/or audited by the State Auditor and HHSC, The Contractor, Respondent, or vendor must cooperate with the review and/or audit. Additionally, pursuant to Title 1 of the Texas Administrative Code Part 15, Chapter 391, Subchapter D, Rule §391.405(a), HHSC may examine a Respondent's standards of conduct in the evaluation of a bid, offer, proposal, quote, or other applicable expression of interest in a proposed purchase of Goods or Services.

Any vendor, Contractor, or Subcontractor, that violates a provision of Title 1 of the Texas Administrative Code Part 15, Chapter 391, Subchapter D may be barred from receiving future contracts or have an existing contract canceled. Additionally, HHSC may report the vendor's actions to the Comptroller of Public Accounts for statewide debarment, or law enforcement.

8.1.8 Disclosure of Interested Parties

Pursuant to Section 2252.908 of the Texas Government Code, a successful Respondent to be awarded a Contract with a value of $1 million or more or awarded a Contract that would require the successful Respondent to register as a lobbyist under Texas Government Code Chapter 305 must submit a disclosure of interested parties form to HHSC at the time the Respondent submits the signed Contract. Rules and filing instructions may be found on the Texas Ethics Commission's public website and additional instructions will be given by HHSC to the successful Respondent.

8.2 INSURANCE

8.2.1 Required Coverage

For the duration of any Contract resulting from this Solicitation, the successful Respondent shall acquire insurance, with financially sound and reputable independent insurers, in the type and amount listed in **Exhibit R, Insurance Requirements**. If coverage expires during the term of the Contract, renewal certificates for each type of coverage must be provided to System Agency. Failure to maintain insurance coverage or acceptable alternative methods of insurance shall be deemed a breach of Contract.

In the event that any policy is determined by the System Agency to be deficient to comply with the terms of this Contract, System Agency may require additional policies or coverage as the System Agency may reasonably request or that are required by law or regulation.

8.2.2 Alternative Insurability

Notwithstanding the preceding, HHSC reserves the right to consider reasonable alternative methods of insuring the Contract in lieu of the insurance policies customarily required. It will be the Respondent's responsibility to recommend to HHSC alternative methods of insuring the Contract. Any alternatives proposed by Respondent should be accompanied by a detailed explanation regarding Respondent's inability to obtain the required insurance and/or bonds. HHSC shall be the sole and final judge as to the adequacy of any substitute form of insurance coverage.

8.3 PROTEST

Any protest shall be governed by the rules published by HHSC in the Texas Administrative Code Title 1, Part 15, Chapter 391, Subchapter C (Protests).

ARTICLE IX. LIST OF EXHIBITS

EXHIBIT A	**HHS SOLICITATION AFFIRMATIONS, VERSION 2.10**
EXHIBIT B	**HEALTH AND HUMAN SERVICES (HHS) UNIFORM TERMS AND CONDITIONS – VENDOR, VERSION 3.4**
EXHIBIT C	**HEALTH AND HUMAN SERVICES (HHS) ADDITIONAL PROVISIONS, VERSION 1.0**
EXHIBIT D	**DATA USE AGREEMENT (DUA), VERSION 8.5**
EXHIBIT D-1	**ATTACHMENT 2 TO THE DUA, SECURITY AND PRIVACY INQUIRY, (VERSION 2.1)**
EXHIBIT E	**EXCEPTIONS FORM**
EXHIBIT F	**ASSUMPTIONS FORM**
EXHIBIT G	**ASSURANCES – NON-CONSTRUCTION PROGRAMS**
EXHIBIT H	**CERTIFICATION REGARDING LOBBYING**
EXHIBIT I	**EVALUATION TOOL**
EXHIBIT J	**HHS ONLINE BID ROOM INFORMATION**
EXHIBIT K	**HHS FEDERAL FUNDING ACCOUNTABILITY AND TRANSPARENCY ACT (FFATA) CERTIFICATION FORM**
EXHIBIT L	**INFORMATION SECURITY AND PRIVACY REQUIREMENTS**
EXHIBIT M	**COST PROPOSAL**
EXHIBIT N	**REQUIREMENTS TRACEABILITY MATRIX**
EXHIBIT O	**VPAT WCAG EDITION**
EXHIBIT O-1	**VPAT REVISED SECTION 508 EDITION**
EXHIBIT O-2	**HHS UNIFORM ELECTRONIC AND INFORMATION RESOURCES (EIR) ACCESSIBILITY CLAUSE**
EXHIBIT P	**HHSC IDENTITY AND ACCESS MANAGEMENT (IAM) GUIDE**
EXHIBIT Q	**SUBCONTRACTING PLAN REQUIREMENTS**
EXHIBIT R	**INSURANCE REQUIREMENTS**